

25STCV29139 25STCV29139

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-09-14

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Case Number: 25STCV29139 Hearing Date: September 14, 2026 Dept: 9

On July 2, 2026, Attorney Andrew T. Ryan, Esq. ("Counsel"), filed the instant motion to be relieved as counsel for Plaintiff Jane Doe K.M. ("Client").

Counsel has filed a form MC051 and MC-052 and has lodged with the Court a copy of the proposed order on form MC-053 pursuant to CRC Rule 3.1362.

The MC-052 form states that Counsel served Client via mail at Client's last known mailing address which Counsel has confirmed as current within 30 days of filing the motion by email confirmation.

Counsel states that "[a] fundamental breakdown has occurred in the attorney-client relationship between the client and The Ryan Law Group, making it unreasonably difficult for counsel to continue effective representation. This breakdown is also of a nature that would render continued representation inconsistent with counsel's ethical obligations."

Counsel is ordered to file and serve a new and revised proposed order on form MC-053 prior to the commencement of the hearing on September 15, 2026. The revised proposed order should be amended to remove the hearings that will have passed by the time of the September 15, 2026 hearing. So please delete the 7/9/26 hearing. Instead, the revised proposed orders must include the following upcoming hearings and additional language:

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Item 6: Please add Client's current email address

used to confirm Client's mailing address

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In item 7a: Delete "07/09/2026 at 10:00

a.m. at Department 9, Spring Street Courthouse" and replace with "11/16/26 at 10 am in Department 9, 312 N. Spring St. Los Angeles, CA 90012. All parties are ordered to appear."

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In item 7b: Delete "Further Status

Conference" and replace with "Status conference regarding status of settlement.

All parties are ordered to file a joint report by no later than 11/9/26

stating: (a) whether Plaintiff signed a

settlement agreement and release, (b) if so, whether any obstacle or issue has

arisen with respect to the allocation process for Plaintiff, (c) if so, what

solution each party proposes to overcome the obstacle/problem, (d) whether

Plaintiff and Defendant each still wish to proceed with the settlement, and (e)

what if any motion practice will be necessary to resolve any dispute between

the parties as to the enforceability of any settlement agreement and/or

release."

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In Item 13: add "Moving Counsel is ordered

to file proof of service of this signed order on all parties within 2 court days."

Counsel is responsible for determining if

there are any other hearings scheduled, which must all be listed in the

proposed order. For each hearing,

Counsel must state the date, time, and location of the hearing including the

address and Department number as follows: "Spring Street Courthouse, 312 N.

Spring Street, Dept. 9, L.A., CA 90012."

Provided that Counsel presents a corrected

proposed order at or before the hearing on this motion, the motion to be

relieved as counsel will be granted.

Otherwise, the motion will be denied without prejudice.

Prior to the commencement of the

hearing, Counsel must also file and serve a declaration setting forth:

(1)

Whether the instant action is more properly related to the original lead MacLaren Hall case (Jane Doe 1 vs County of Los Angeles, 21STCV20949) or the new lead MacLaren Hall case (KN vs County of Los Angeles, 25STCV29816);

(2)

whether Client (Plaintiff Jane Doe K.M.) has opted in or opted out of the Group A settlement with the County,

(3)

whether Counsel has provided Defendant with a copy of a Release signed by Client confirming an election to opt in;

(4)

whether there is any change in circumstance as to Client's election to opt in or out of the settlement with the County;

(5)

clarification as to how Counsel confirmed Client's mailing address through email confirmation.
Has Client confirmed in an email within the last 60 days that the address Counsel has listed in the proposed Order is current?

(6)

If the instant action is not part of the Group A settlement, why has Counsel never filed an ex parte application for certificate of merit and to name the Doe defendant since the filing of this action on 10/3/25?

Counsel should note that after the order is signed, the order will only become effective upon the filing of a proof of service of a signed copy of the order on Plaintiff. Counsel will remain the attorney of record until Counsel files with the Court proof of service of the signed order. Counsel will be ordered to serve a copy of the signed order (MC-053) on Plaintiff within five days.

Counsel is ordered to serve copies of the instant order and the signed form MC-053 order on all parties, including Client, and file proof of service of such within 2 days.